

3.

CASE #	CASE NAME	HEARING NAME
CVRI2203570	MIDDLETON vs HOUSEHOLDER GROUP ESTATE AND RETIREMENT SPECIALIST, LLC	MOTION FOR SUMMARY JUDGMENT ON 1ST AMENDED COMPLAINT

Tentative Ruling: Appearances to discuss how motion applies to allegations of second amended complaint, the operative complaint, which was filed after the motion. It appears that the allegations have changed as they relate to the moving party, at least the allegations in the 10th cause of action.

4.

CASE #	CASE NAME	HEARING NAME
CVRI2301559	COUNTY OF RIVERSIDE vs CITY OF MORENO VALLEY	MOTION FOR ATTORNEYS FEES

Tentative Ruling: No tentative ruling, appearances requested.

5.

CASE #	CASE NAME	HEARING NAME
CVRI2305704	BUSTILLO vs WILSON CREEK WINERY & VINEYARDS, INC.	MOTION FOR PRELIMINARY APPROVAL OF CLASS ACTION SETTLEMENT

Tentative Ruling: Appearances requested to discuss:

1. Settlement not signed by Defendant. (CMO ¶ G.1.a.)
2. The parties do not explain why they chose the proposed recipient compared to other potential recipients. (CMO ¶ G.3.c.ii.) Why is a veteran's organization a proper cy pres in a wage and hour action?
3. No declaration from defense counsel indicating a relationship between the parties (including officer, director or manager), counsel, their firm and the proposed recipient. (CMO ¶ G.3.c.iv.)
4. The proposed order does not provide that the objection and exclusion forms that are to be submitted to the settlement administrator (and not the Court). (CMO ¶ G.4.e – f.)
5. The proposed order does not indicate that the settlement administrator must submit a declaration to the court authenticating each exclusion form received. (CMO ¶ G.4.e – f.)
6. There is no defense declaration regarding the likely age, education, experience, and ability to read English. (CMO ¶ G.3.k.ii.)
7. The notice does not indicate where the class members can find the settlement (full title, filing date). (CMO ¶ G.5.c.)